

HOUSE BILL 2608

By Hulsey

AN ACT to amend Tennessee Code Annotated, Title 10;
Title 24 and Title 38, relative to historical location
data.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, is amended by adding the following
as a new chapter:

38-4-101. Short title.

This chapter is known and may be cited as the "Protecting Everyone from
Excessive Police Surveillance (PEEPS) Act."

38-4-102. Legislative findings.

The general assembly finds that government officials or entities violate the Fourth
Amendment of the United States Constitution when, without adequate safeguards, such
officials and entities create or access databases that reveal or contain information that
can be used to reveal an individual's or vehicle's historical locations. This chapter
regulates access to, and the security of, that information.

38-4-103. Chapter definitions.

As used in this chapter:

(1) "Access" means viewing, querying, retrieving, copying, transmitting,
analyzing, or otherwise using a database, whether manually or automatically;

(2) "Collect" means to gather information using technology, including, but
not limited to, license plate readers, cameras, or aerial drones that record data
about an individual's or vehicle's locations or movements;

(3) "Database" means a physical or digital information storage system, whether publicly or privately owned, that contains photos and videos of individuals and vehicles, license plate data, facial recognition data, biometric data, cellular device location data, or a combination thereof;

(4) "Governmental entity" means a government agency, office, bureau, division, board, council, commission, or political subdivision, including a county, municipality, or metropolitan government;

(5) "Government official" means an officer, employee, agent, contractor, or representative of a governmental entity;

(6) "Historical location data" or "data":

(A) Means a record that, when accessed, reveals an individual's or vehicle's location at specific points in time more than twenty-four (24) hours prior to the date of access; and

(B) Does not include video or image recordings generated by cameras on or in government-owned buildings, or dashboard or body-worn cameras owned and operated by governmental entities, regardless of whether such cameras transmit, store, or back up recordings to a local or centralized storage system, so long as the recordings are not indexed, searchable, or analyzed by an individual, vehicle, biometric identifier, or another unique identifier for the purpose of tracking or reconstructing an individual's or vehicle's historical location data; and

(7) "Supervisor" means a government official who possesses the authority to direct and discipline one (1) or more government officials within a governmental entity.

38-4-104. Government official's access to databases.

A government official shall not access a database that reveals historical location data unless:

(1) The government official obtains a search warrant, pursuant to title 40, chapter 6, part 1, or Rule 41 of the Tennessee Rules of Criminal Procedure, and not in the form of a subpoena, to access the database in pursuit of a felony investigation;

(2) The defendant in a criminal case requests that the government preserve the defendant's historical location data, in which case the government shall preserve the defendant's historical location data;

(3) All individuals whose historical location data would be revealed give the government official informed and express consent for the government official to access their historical location data in a specific database;

(4) The registered owner of a vehicle reports the vehicle lost or stolen, and gives the government official informed and express consent for the government official to access the vehicle's historical location data in a specific database;

(5) Exigent circumstances exist at the time of access, including a call for emergency services or during an emergency situation under § 38-1-602, that make it impractical to obtain a search warrant before the exigency expires; or

(6) The government official uses the historical location data solely for the following purposes:

(A) Toll collection and enforcement;

(B) Traffic enforcement;

(C) Parking enforcement; or

(D) Information security as necessary to implement the requirements of § 38-4-105.

38-4-105. Maintenance of historical location data.

(a) A government official or governmental entity that collects historical location data shall not share it outside the official's or governmental entity's scope of employment, except as permitted under § 38-4-104.

(b) A government official or governmental entity that collects historical location data shall not sell or convey such data to a private, non-governmental third party for any reason.

(c) A governmental entity that collects historical location data shall:

(1) Adopt and observe a written policy ensuring that the security and access provisions of this chapter are followed;

(2) Destroy all historical location data not less than two (2) days and not more than seven (7) days after the data is collected, except when a criminal defendant requests that their historical location data be preserved under § 38-4-104(2);

(3) If permitted to maintain data for a lawful purpose, encrypt or otherwise render historical location data unreadable to an unauthorized accessor, using methodology or technology generally accepted in the field of information security;

(4) Create and maintain a record for every instance in which historical location data is accessed. Such records must include:

(A) The identity of the government official or governmental entity seeking access;

(B) The specific purpose for which access was sought;

(C) The provision of § 38-4-104 that permitted access to such data and the specific factual basis for believing that the provision was satisfied;

(D) The identity and written approval of the supervisor permitting access;

(E) A full description of the historical location data accessed; and

(F) The redaction of license plate numbers, facial images, or other personal information;

(5) Require that a supervisor audit the records required by subdivision (c)(4) on a monthly basis to verify and evaluate:

(A) That all information required under subdivision (c)(4) has been provided;

(B) That the specific purpose for which access was sought complies with this chapter;

(C) That the scope of the historical location data accessed was appropriate in light of the specific purpose; and

(D) Whether any other factors suggest noncompliance with this chapter, such as large volumes of searches by the same government official, differing reasons for searching for similar historical location data, or any other factors that would reasonably suggest that the specific purpose provided to search such data was pretextual or not permitted under this chapter. When the auditing supervisor determines or has reason to believe that a government official or governmental entity has violated this chapter, the supervisor shall order further investigation of the violation; and

(6) Annually report on compliance with this chapter to the judiciary committee of the senate and the committee of the house of representatives with jurisdiction over criminal justice. The report shall summarize all records that the governmental entity created and maintained in the past year under subdivision (c)(4).

(d) Each government official whose duties include accessing a database that contains historical location data must undergo training on compliance with this chapter. The training must not be created or administered by a private entity whose business involves collecting historical location data.

38-4-106. Violations of this chapter.

(a) If a governmental entity learns that a government official within that governmental entity has violated this chapter, the governmental entity shall suspend that government official's access to any database that contains historical location data for:

- (1) Seven (7) days upon a first violation;
- (2) Thirty (30) days upon a second violation; and
- (3) Permanently upon a third violation.

(b) If the attorney general and reporter learns that a government official or governmental entity has violated this chapter, the attorney general and reporter may bring a civil action for declaratory and injunctive relief to prevent ongoing or future violations.

(c) This section does not preclude a government official or governmental entity from taking additional or more severe disciplinary actions when such official becomes aware of a violation of this chapter.

38-4-107. Prohibition on less restrictive local laws.

A municipality, county, metropolitan government, or other political subdivision of this state shall not enact a law, ordinance, resolution, regulation, rule, or policy that permits a government official or governmental entity to access historical location data in a manner less restrictive than that provided in this chapter.

SECTION 2. Tennessee Code Annotated, Section 10-7-504, is amended by deleting subdivision (a)(32)(B) and substituting:

(i) Historical location data, as defined in § 38-4-103, is confidential and not open to inspection by members of the public.

(ii) This subdivision (a)(32) must not be construed to limit public access to a governmental entity's annual compliance report required by § 38-4-105(c)(6).

SECTION 3. Tennessee Code Annotated, Title 24, Chapter 7, is amended by adding the following as a new section:

Historical location data, as defined in § 38-4-103, accessed in violation of the Protecting Everyone from Excessive Police Surveillance (PEEPS) Act, compiled in title 38, chapter 4, is not admissible as evidence in a criminal or civil proceeding.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.